

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA

JOSEPH KIRCHNER,
Plaintiff,
v.
MIKE JOHNSON et al.,
Defendants.

Case No. 1:25-cv-02735-ACR

**PLAINTIFF'S UNOPPOSED MOTION FOR
LEAVE TO FILE A SURREPLY TO THE
CORPORATE DEFENDANTS' REPLY (ECF
NO. 75)**

I. INTRODUCTION

1. Plaintiff Joseph Kirchner, proceeding *pro se*, respectfully moves, under Local Civil Rule 7 and paragraph 7.c of the Court's Civil Standing Order (Mar. 4, 2026), for leave to file a sur-reply of no more than eight pages. In compliance with paragraph 7.c, no copy of the proposed sur-reply accompanies this Motion; this Motion makes the specific showing of good cause the Standing Order requires by identifying each matter the sur-reply would address. The sur-reply would be confined to matters the Corporate Defendants presented for the first time in their Reply (ECF No. 75) and to one statement in the Reply that attributes to Plaintiff's Opposition (ECF No. 74) a concession the Opposition does not contain. Plaintiff reserved this request in the Opposition itself. ECF 74 at 15 ¶ 16.

II. STANDARD

2. "The standard for granting a leave to file a surreply is whether the party making the motion would be unable to contest matters presented to the court for the first time in the opposing party's reply." *Lewis v. Rumsfeld*, 154 F. Supp. 2d 56, 61 (D.D.C. 2001). The district court "routinely grants such motions when a party is 'unable to contest matters presented to the court for the first time' in the last scheduled pleading." *Ben-Kotel v. Howard Univ.*, 319 F.3d 532, 536 (D.C. Cir. 2003) (quoting *Lewis*). The rule exists because entertaining an argument

raised for the first time in reply "would be manifestly unfair" to the party who "has no opportunity for a written response." *Herbert v. Nat'l Acad. of Scis.*, 974 F.2d 192, 196 (D.C. Cir. 1992); *see also McBride v. Merrell Dow & Pharms., Inc.*, 800 F.2d 1208, 1211 (D.C. Cir. 1986) (an argument "advanced for the first time in a reply brief" is "unfair to an appellee" and "entails the risk of an improvident or ill-advised opinion"). The Court's Standing Order permits a sur-reply "upon a specific showing of good cause." Standing Order ¶ 7.c. The showing follows, item by item.

III. THE REPLY PRESENTS NEW MATTER: THE SPECIFIC SHOWING

3. The Corporate Defendants' Memorandum (ECF No. 70-1) is forty-five pages long. The following arguments appear nowhere in it and appear for the first time in the Reply:

4. **"Software is not a product."** The Reply opens its products-liability section: "Defendants' software is not a 'product' within the meaning of the doctrine, and certainly not as a matter of D.C. law. See MTD 54-56. Plaintiff's Opposition does not credibly dispute this." ECF 75 at 30. The cited pages of the Memorandum argue the elements of the three product-defect theories and nowhere argue that software is not a product; the word "software" does not appear in that section. ECF 70-1 at 43–45. The Opposition did not dispute an argument that had not been made, and the Complaint pleads the contrary proposition with authority. TAC ¶ 318. Sur-reply § IV.

5. **The ECF 57 device argument.** The Reply argues that Plaintiff's Computer Fraud and Abuse Act claim against Comcast fails because "the 'log records' on which he relies concern entirely different equipment," citing Plaintiff's emergency motion, ECF No. 57 at 16–17, and its Exhibit 2. ECF 75 at 25–26. The Memorandum does not cite ECF No. 57 at all. The Reply builds on those pages a factual assertion about what the logs "do not say" that the cited pages

answer in terms: they attribute the password changes to Comcast's TR-069 provisioning process and the logins to Comcast's operator account. ECF 57 at 16–17 ¶ 24(a), (d). Sur-reply § II.

6. Software and intent. The Reply argues that Plaintiff's claims against Anthropic fail because "an AI coding assistant" "lack[s] consciousness and therefore lack[s] intent," citing *Alice Corp. Pty. Ltd. v. CLS Bank Int'l*, 573 U.S. 208 (2014), and *Thaler v. Perlmutter*, 130 F.4th 1039 (D.C. Cir. 2025). ECF 75 at 27. Neither case is cited in the Memorandum, and the argument is new. Sur-reply § III.

7. Concession by silence. The Reply argues that Plaintiff "has conceded" the zone-of-danger theory of negligent infliction of emotional distress by not responding to it, citing *Betz v. Jefferson Cap. Sys., LLC*, 68 F. Supp. 3d 130, 136 (D.D.C. 2014). ECF 75 at 30. *Betz* is not cited in the Memorandum, and the request that a theory be treated as conceded is new. Plaintiff seeks leave to state his position on that theory in two sentences; doing so narrows the dispute and removes the need for any ruling on the concession point. Sur-reply § V.

8. The Reply also adds, for the first time, *Lujan v. Defenders of Wildlife*, 504 U.S. 555 (1992), and *Clapper v. Amnesty Int'l USA*, 568 U.S. 398 (2013), on Count XI (ECF 75 at 23), a second unsworn footnote assertion on personal jurisdiction over METR (ECF 75 at 9 n.5), and an uncited characterization of the December 4, 2025 Department of Justice memorandum (ECF 75 at 17). Plaintiff does not ask to brief these; he notes them so that the Court has the full measure of what the Reply presents for the first time.

IV. THE REPLY MISATTRIBUTES A CONCESSION

9. On Count VIII (copyright), the Reply states that Plaintiff "acknowledges that the pleading defects raised in the MTD . . . 'cannot be cured by amending the . . . complaint,'" citing ECF 74 at 41, and on that basis asks that the count be dismissed "without leave to amend." ECF

75 at 20. The quoted words come from a sentence in which Plaintiff described *the movants' own authorities*: "The contrary authority the motion collects holds only that the defect cannot be cured by amending the same complaint; none holds the claim extinguished." ECF 74 at 41. The same section argues, under *Reed Elsevier, Inc. v. Muchnick*, 559 U.S. 154 (2010), and 17 U.S.C. § 507(b), that the proper disposition is dismissal *without* prejudice. *Id.* at 40–41. The Reply does not mention either authority. A party's description of its opponent's cases is not that party's admission, and Plaintiff should be permitted to say so before the Court rules on the form of the dismissal. Sur-reply § I.

V. THE SUR-REPLY WOULD BE SHORT AND CONFINED

10. The proposed sur-reply would not exceed eight pages. It would not reargue the Opposition, would not respond to the Reply's characterizations of the record generally, and would not address the many points on which the Reply is silent. It would address the four matters identified in Part III, the misattribution identified in Part IV, and one internal cross-reference in the Reply that points to a discussion the Reply does not contain (ECF 75 at 31, citing "supra Section II.A. (discussing improper incorporation)"), which bears on whether the Opposition's Rule 10(c) argument has been answered at all. If leave is granted, Plaintiff will file the sur-reply within seven days of the Order or such other time as the Court directs.

11. No delay results. The Reply was filed on September 18, 2026, the last day the Court's Minute Order of May 28, 2026 allowed for it, and this Motion follows within days of it. No hearing has been set.

VI. LOCAL CIVIL RULE 7(m) STATEMENT

12. Pursuant to Local Civil Rule 7(m) and paragraph 7.h of the Court's Civil Standing Order, Plaintiff conferred with counsel for the Corporate Defendants by email on September 21,

2026, and again on September 22, 2026. Counsel for the Corporate Defendants responded on September 22, 2026, that, without conceding that their Reply raised new issues or that a sur-reply is otherwise warranted, the Corporate Defendants do not oppose Plaintiff's request for leave to file a sur-reply of no more than eight pages within seven days of the Court's ruling on this Motion. The Motion is therefore unopposed. It seeks no relief against the Federal Defendants, who did not join the Reply.

VII. RELIEF REQUESTED

13. Plaintiff respectfully requests that the Court enter an Order:

(a) **Granting** Plaintiff leave to file a sur-reply to the Corporate Defendants' Reply (ECF No. 75), not to exceed eight pages and confined to the matters identified in Parts III through V of this Motion; and

(b) **Directing** that the sur-reply be filed within seven days of the Order.

A proposed Order is submitted with this Motion.

Respectfully submitted,

Dated: September 23, 2026

/s/ Joseph Kirchner

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CERTIFICATE OF SERVICE

I certify that on September 23, 2026, I filed the foregoing Motion and the proposed Order through the Court's CM/ECF system, which will send notice of the filing to all counsel of record.

/s/ Joseph Kirchner

JOSEPH KIRCHNER